

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

**IN RE: ELENI RANDOS
License No. 068-0000405**

) **DOCKET No. MH01-1206**
)

STIPULATION AND CONSENT ORDER

NOW COMES the State of Vermont, by and through its State Prosecuting Attorney, Edward G. Adrian, and the Respondent, Eleni Randos, who stipulate and agree as follows

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65 and; the rules of the Board and the Vermont Office of Professional Regulation.
2. Failing to comply with provisions of federal or state statutes or rules governing the practice of the profession is unprofessional conduct upon which the administrative law officer can base disciplinary action. 3 V.S.A. §129a(a)(3).
3. Practicing the profession when medically or psychologically unfit to do so is unprofessional conduct. 3 V.S.A. §129a(a)(5).
4. Fraudulent or deceptive procurement or use of a license is unprofessional conduct. 3 V.S.A. §129a(a)(1).
5. Performance of unsafe or unacceptable patient or client care or failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct. 3 V.S.A. §129a(b)(1) and (2).
6. Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous two years is unprofessional conduct. 26 V.S.A. § 3271(a)(4).
7. Conduct which evidences unfitness to practice clinical mental health counseling is unprofessional conduct. 26 V.S.A. § 3271(a)(3).
8. Entering into an additional relationship with a client, supervisee, research participant or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's obligations is unprofessional conduct. 26 V.S.A. § 3271(a)(6).

Statement of Facts

9. Eleni Randos (the "Respondent") of Underhill, Vermont is a clinical mental health counselor holding license number 068-0000405, issued by the State of Vermont. This license was originally issued on or about September 21, 1998 and is set to expire on January 31, 2009.
10. At all relevant times the Respondent was employed as a Clinical Mental Health Counselor at Northwestern Counseling and Support Services (the "Facility").
11. On or about July 7, 2006 the Respondent began seeing "Client #1" at the Facility. The Respondent continued seeing Client #1 through October 11, 2006. The therapy abruptly stopped even though at one point the Respondent had been seeing Client #1 three times a week. The Respondent was doing trauma work with Client # 1.
12. On or about December 21, 2006 the Respondent filled out a short term disability claim indicating that she could not attend work because of "anxiety in the context of acute, severe work stress" and "it is not possible [] to work as a psychotherapist with her own anxiety so high."
13. On or about December 18, 2006 the Respondent filled out a renewal application form with the Office of Professional regulation and answered "no" to the question "Do you have a physical or mental condition or disorder which in any way impairs or limits your ability to practice with reasonable skill and safety?"
14. On or about December 5, 2006 the Facility Director of Behavioral Health Services called Client #1 and asked her if she had been having a personal relationship with the Respondent. Client # 1 denied any personal relationship at that time.
15. On or about January 9, 2007 one of the employees of the Facility, L.K., told Investigator Pam Barney that she felt the Respondent had "hit on" her and invaded her personal space while they were working together. L.K. did not inform Respondent of her discomfort and did not complain to Facility management about it.
16. On or about April 11, 2007 Investigator Barney interviewed Client #1 and Client #1 indicated that she had a personal, sexual relationship with the Respondent starting on October 14, 2006.
17. Within the time frame that the Respondent started her relationship with Client #1, Client #1 terminated her relationship with another woman.
18. The Respondent also spent time at Client #1's residence. The Respondent and Client #1 took care of each other's child, while the other adult was out of the residence.
19. Client #1 terminated the relationship with the Respondent in December, 2006.

Understandings

20. Respondent understands that the Board of Allied Mental Health Practitioners must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
21. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced her rights to a fair and impartial hearing in future hearings if this agreement is not accepted by the Board. When the Board reviews this Stipulation the State's disclosures to the Board shall consist solely of the terms contained in this Stipulation and Consent Order.
22. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
23. Respondent voluntarily enters this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing the Stipulation and Consent Order.
24. Respondent voluntarily waives her right to charges and a contested hearing before the Board of Allied Mental Health Practitioners and waives any right to appeal from this Stipulation and Consent Order.

ORDER

Based on the Stipulation above it is **ORDERED AND ADJUDGED** as follows:

- A. The Board finds and accepts the facts as alleged in paragraphs 9-19 above; and
- B. Therefore, the Board finds that there is a sufficient factual basis to conclude that the Respondent has engaged in unprofessional conduct and has violated the statutory and regulatory provisions set forth in paragraphs 2-8 above.
- C. The Board hereby **SUSPENDS** Respondent's license 068-0000405 to practice clinical mental health for a **minimum period of EIGHTEEN (18) MONTHS**, effective on the date of entry of this Order.

ETHICS COURSE WORK - Before applying for reinstatement the Respondent shall take a three (3) credit graduate level course in ethics. This program must be approved by the Board in advance. If the Respondent is unable to fulfill this requirement, as the result of course schedules, before the expiration of the suspension period, she may petition the Board to allow this requirement to be completed after being reinstated and placed on conditions.

SEXUAL HARASSMENT TRAINING - Before applying for reinstatement the Respondent shall take a training course in preventing sexual harassment and dual relationships in the workplace. This course must be approved in advance by the Board.

EVALUATIONS - Before applying for reinstatement, the Respondent shall have two evaluations performed. Both evaluations shall be performed by professionals who are approved by the Board in advance of any evaluation. The first evaluation shall be performed by a psychologist licensed in the State of Vermont or State of New Hampshire. The second evaluation must be performed by a psychiatrist licensed in the State of Vermont or State of New Hampshire. Both evaluations must indicate 1) the Respondent's past medical and/or mental health history as appropriate; 2) what is being done to rectify both acute and chronic problems; 3) that the Respondent is fit and capable of returning to the practice of mental health counseling and does not present a risk of harm to the public; and 4) The Respondent shall receive counseling to assist her in rectifying any acute or chronic health problems affecting the Respondent's ability to practice safely. Both professionals approved by this Board shall review the counseling undergone by the Respondent to rectify any acute or chronic health problems. The evaluations required by this order shall state whether there is an ongoing need for counseling to manage any chronic health problems afflicting the Respondent's ability to engage in the practice of the profession safely. At the end of the suspension period, the Respondent shall petition the Board for reinstatement of her license.

If reinstated the Respondent's license to practice as a clinical mental health counselor shall be **CONDITIONED** for a **PERIOD OF THREE (3) YEARS**.

The **CONDITIONS** on Respondent's license are as follows:

(1) Supervision.

Respondent shall permit her practice to be supervised by the Board through another mental health practitioner approved by the Board. Respondent shall submit the name and qualifications of three potential supervisors 60 (sixty) days before the date of reinstatement of the Respondent's license.

a. The Respondent shall submit three names of potential supervisors with curriculum vitae; a cover letter from each supervisor and willingness to provide supervision; and the detail and type of any professional, personal or community relationship that the supervisor had with the Respondent in the past.

b. The supervisor must have been a licensee of the Board for at least the last three years. The supervisor must be willing to meet with the Respondent at least once per week for face-to-face consultation and must provide for substitute consultation for when the supervisor cannot meet.

c. A supervision plan shall be submitted to the Board for review and it shall include: 1) the goals and objectives of the supervision, with an emphasis on dual relationships and ethical issues; 2) identification of professional resources to be employed; and 3) description of how the Respondent's clinical work will be assessed.

d. The supervisor shall create and submit monthly reports concerning the progress of

the Respondent in relation to the goals and objectives outlined in the supervision plan.

D. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.

E. If Respondent violates the terms of this Consent Order, the Board, after giving Respondent notice and an opportunity to be heard, may take further disciplinary action.

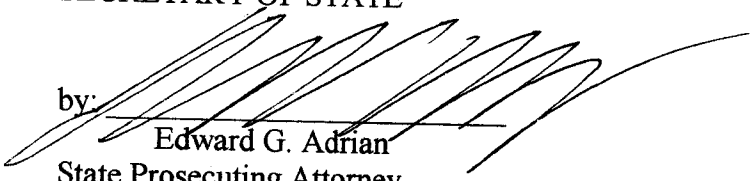
F. This Stipulation and Consent Order shall remain part of Respondent's licensing file and may be used in any further disciplinary proceeding.

G. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 8/3/07

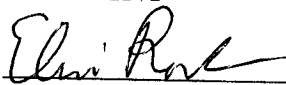
by: 

Edward G. Adrian

State Prosecuting Attorney

ELENI RANDOS
RESPONDENT

Dated: 7/24/07

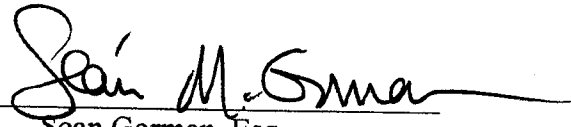
by: 

Eleni Randos

APPROVED AS TO FORM:

ATTORNEY FOR RESPONDENT

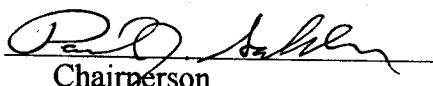
Dated: 7/30/07

by: 

Sean Gorman, Esq.

APPROVED AND SO ORDERED: VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 8-14-07

by: 

Chairperson

Dated entered: 8/20/07